

File No.: EXP202208020

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on June 22, 2022.

The complaint is directed against AYUNTAMIENTO DE OURENSE with NIF P3205500F (hereinafter, the AYUNTAMIENTO). The reasons for the complaint are as follows:

The claimant states that on March 10, 2022, the respondent published the NOTIFICATION OF THE CALL and the ORDINARY MINUTES OF THE LOCAL GOVERNMENT BOARD OF MARCH 10, 2022. The aforementioned document contains the identifying data of the claimant in relation to a sentence in which he is convicted of committing a crime against road safety causing damage to municipal property. (...)

According to the claimant, by entering his name and surname into search engines, a link is obtained that allows access to the disputed document.

Along with the complaint, the claimant provides the aforementioned call and the ordinary minutes.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the AYUNTAMIENTO for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), being accepted on July 20, 2022, as stated in the certificate in the file.

On August 12 of that same year, this Agency received a response indicating (...).

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However, this Agency confirmed by diligence dated August 22, 2022, that by using the Google search engine, it is possible to access the complete notification document of the call from the Government Board, available at the domain www.ourense.gal.

THIRD: On August 22, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On November 14, 2022, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.4 of the GDPR and Article 83.5 of the GDPR, respectively.

FIFTH: After notifying the aforementioned initiation agreement in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the respondent submitted a written statement of allegations in which it stated: "FIRST. - That the Spanish Agency for Data Protection has agreed to initiate sanctioning proceedings for the alleged infringement of Article 5.1.f) of the GDPR relating to the principle of confidentiality and Article 32 of the GDPR relating to security measures."

Indeed, as stated in the fourth fact of this resolution, on November 14, 2022, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement

of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.5 and 83.4 of the GDPR, respectively.

“SECOND. - Regarding the alleged violation of Article 5.1.f) of the GDPR (principle of confidentiality), it is worth reiterating that it was a human error, involuntary and isolated, which was immediately rectified by removing the minutes and the notification of the call in question from the AYUNTAMIENTO's website. In the allegations presented in August 2022 by this party, a screenshot of the AYUNTAMIENTO of Ourense was submitted as documentary evidence, showing that the call from the Board no longer appears (the screenshot of the removal of the call from March 10 was inadvertently omitted). As of today, it can still be verified that, on the Transparency Portal of the entity, in the section Orders of the Day of the Government Board (<https://ourense.gal/es/juntasgobierno/ordenes?page=3>), and in the section minutes (<https://ourense.gal/es/juntasgobierno/actas?page=5>), there are no documents regarding the call and minutes of the meeting held on March 10, 2022.

On the other hand, it was indicated in the writing that in search engines on the Internet, this suppression could take more time than reasonable, stating that, in that case, it would opt to communicate this fact to the search platforms through which the link of Mr. Yago to the documents (call and minutes) of the local entity could still be found.

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After verifying that, through Google, it is still possible to access documents that were deleted months ago from the website of the City Council of Ourense, this entity has proceeded to request, from its IT Department, the removal of the notification of the meeting call and the minutes of the meeting held on March 10, 2022. Attached as ANNEX 1 is the request for the removal or deletion of obsolete content from Google.

Although this is a document that contains the personal data of the complainant and their relation to a criminal conviction, we reiterate that it is a completely isolated, unintentional fact, affecting only one person.

In response to this allegation, we must reiterate what was mentioned in the letter dated August 12 of that same year received by this Agency indicating (...).

However, this Agency confirmed by diligence dated August 22, 2022, that by using the Google search engine, it is possible to access the complete document of the notification of the meeting call of the Governing Board, available at the domain www.ourense.gal.

That the incident was due to a completely isolated, unintentional fact, affecting only one person; in no case justifies the violation of confidentiality, integrity, and availability of the processing systems and services, as well as the non-compliance by the CITY COUNCIL with the current regulations on data protection as the data controller.

“THIRD. – Regarding the alleged infringement of Article 32 of the GDPR, it is worth highlighting that, concerning security measures, this party, in its statement of allegations from August 2022, after the transfer of the complaint and request for information, indicated the following measures implemented urgently:

- Review and Implementation of a Data Protection System.

While it is true that the City Council of Ourense is engaged in the constant and continuous review of the implemented data protection system, a copy of the status of the Data Protection System of the entity at that time was attached.

- Appointment of a DPO.

The City Council of Ourense appointed a Data Protection Officer (DPO) taking as a reference the “Guidelines on Data Protection Officers (DPOs)” adopted by the Article 29 Working Party, guided by the following criteria:

- a) Independence and absence of conflict of interest of the data protection officer.
- b) Accessibility and location of the data protection officer.
- c) Level of knowledge of the data protection officer.

- d) Integrity and level of professional ethics of the data protection officer.
- e) Professional qualities and knowledge of the sector of the data protection officer.

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The entity externally contracted the position of Data Protection Officer on February 25, 2022 (25/02/2022), appointing B.B.B., with DNI ***NIF.1, as such, as she is a certified professional in accordance with the Certification Scheme for Data Protection Officers of the Spanish Agency for Data Protection (AEPD-DPD Scheme) Certificate No. 19-ADK0105.

The appointment of the Data Protection Officer was immediately communicated to the Spanish Agency for Data Protection, with Registration Number: O00007128e2200009561 and Registration Date March 2, 2022 (02/03/2022).

Due to the appointment, an informative communication was sent via email to all staff of the City Council regarding the appointed figure, her main functions, and contact details. Likewise, to comply with the duty of transparency and information, the contact details of the Data Protection Officer have been included in all informative documents as provided in Articles 12 and following of Regulation (EU) 2016/679.

- Written communication to the affected interested party informing them of the status of the situation. A written communication was prepared addressed to the interested party, informing them of the status of the situation, that these events will not be repeated in the future, and apologizing for the inconveniences caused. Since the address of the interested party is unknown, the effective sending of such communication was left pending.

- A circular was sent to the entity's staff.

A communication was sent to remind the importance of reviewing the personal data included in the publications that must be made for transparency by the City Council and, thereby, ensure maximum respect for the fundamental right to the protection of personal data, indicating that neglecting their obligations in this area can only lead to problems that are difficult to resolve for all involved. Although it is true that, in this case, there is no harm to the rights and freedoms of the interested party, this reminder is useful to prevent similar occurrences in the future.

- Training for the entity's staff.

Various training workshops will be conducted for the City Council staff of Ourense with access to data, with the aim of raising awareness about the importance of guaranteeing the fundamental right to the protection of personal data and reminding them of the essential security measures they must respect in the normal course of their activities.

A poster has already been attached that is used to promote the training day within the City Council of Ourense, as well as the index of the training itself.

Following these measures, which were taken immediately to prevent similar incidents from occurring (and whose documentation was submitted as annexes in the allegations of August), further measures have been adopted, which are outlined below:

1.- Guidelines for the creation of a Transparency Portal.

Document (prepared by the DPO of the entity) with guidelines to be considered for compliance with Law 19/2013, of 9 of

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December, on transparency, access to public information, and good governance, as well as with the General Data Protection Regulation and Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights.

2.- An Audit was conducted on November 25, 2022.

A verification, evaluation, and assessment audit of the effectiveness of the technical and organizational measures to ensure the security of processing has been carried out, with the aim of complying with the provisions established in Article 32, paragraph 1, letter d), of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ L 119/1, 04-05-2016) (GDPR). The audit report is attached as ANNEX 2.

3.- Request for removal of publication on Google.

A request for the removal of obsolete content has been submitted to Google. This is the request that must be made to Google when the content in question has already been removed from the original website but continues to appear on the Internet. In this case, Google has been asked to remove from its search engines the Ordinary Minutes of the Local Government Board of March 10, 2022, and the notification of the Local Government Board meeting. A screenshot is attached as ANNEX 3, which shows that on November 28, 2022, a request was made to Google (by the head of the Information Systems Service of the Ourense City Council) for the removal of the indicated documents as they are considered obsolete content. This request is currently pending processing as of the date. Once Google approves the request and removes the content subject to the procedure from its search engines, the local entity will review the possibility of republishing the minutes for transparency, after verifying that the personal data has been deleted. However, it has been decided to directly remove the documentation subject to the procedure to avoid interfering with the operations that Google must carry out when deleting the documentation and to prevent any "interferences."

4.- Assessment of security breach.

The entity assessed the security breach that occurred in its confidentiality aspect and concluded, after the analysis conducted, that its quantitative and qualitative values do not pose a risk to the rights and freedoms of natural persons.

In short, it is not considered a high risk, according to the criteria given by Regulation (EU) 2016/679; therefore, there was no detected need to notify the incident to the competent supervisory authority or to the affected parties.

Finally, it is recorded as a security incident in the data protection system of the responsible party, specifically in the Register established for this purpose in the document "Data Security."

The assessment of the breach and the incident record are attached as ANNEX 4...

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The CITY COUNCIL, as the data controller, is obliged to apply appropriate technical and organizational measures to ensure a level of security adequate to the risk presented by the data processing.

These measures are not only related to IT systems but also to organizational measures concerning human factors.

Article 32 of the GDPR does not establish a list of security measures applicable according to the data being processed, but rather states that the controller and the processor shall implement technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, as well as the risks of likelihood and severity for the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the identified risk, indicating that the determination of the technical and organizational measures should be made considering: pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, verification processes (not audits), evaluation, and assessment of the effectiveness of the measures. It is evident that the security measures implemented were insufficient; in no case did they prevent the

publication by the City Council of Ourense, on the local entity's website, of the call for the Local Government Board to be held on March 10, which included the personal data of the complainant. Regarding the written allegations from August 2022, following the transfer of the complaint and request for information, which refers to a series of measures implemented urgently after the incident occurred, this party must emphasize that the implementation of these measures only denotes the insufficiency of those that were already in place prior to the incident.

Regardless of the measures adopted to prevent similar incidents from occurring, as well as other measures taken, what is decisive is that there were not sufficient measures or they had not been properly implemented at the time the security breach occurred.

While this Agency values the effort made by the CITY COUNCIL to fulfill its obligation, as the data controller, to apply appropriate technical and organizational measures to ensure a level of security adequate to the risk in the processing of personal data.

"FOURTH. – As a corollary to all that has been stated so far, and as a complementary note, we consider it appropriate to make the following observations, in order to duly inform the Spanish Agency for Data Protection about the reality of the facts subject to the complaint by the interested party:

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1. The incident subject to the complaint has only affected one person, without causing any quantifiable damage or harm, considering its nature, severity, and duration.

2. There has been no intentionality on the part of the City Council of Ourense, as it is due to a fact arising from the concurrence of extraordinary and exceptional circumstances.

3. All urgent measures aimed at correcting the specific incident subject to the complaint have been adopted, as well as all necessary complementary measures to prevent its recurrence in the future, even when such singular and extraordinary circumstances as those that have occurred in the present case arise.

4. From the very first moment the City Council of Ourense became aware of the procedure, a significant amount of resources and efforts have been dedicated to collaborating with the Spanish Agency for Data Protection to ensure the defense of the rights and freedoms of the interested party.

5. This is not an action intended to obtain benefits, and indeed, none have been obtained."

In response to this allegation and without analyzing each observation raised one by one, it should be mentioned that they could be taken into account to mitigate the sanction to be imposed for the infringement committed; in no case for the determination of the non-existence of responsibility for a breach of data protection regulations; since, in any case, the infringement has been committed. In this case, given that the responsible party is a Public Administration, no economic sanction can be imposed, nor can there be factors that mitigate or aggravate responsibility.

For all the above reasons, the allegations presented were DISMISSED.

SIXTH: On March 9, 2023, a resolution proposal was made, proposing to sanction the CITY COUNCIL OF OURENSE, with NIF P3205500F, for an infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.5 and Article 83.4 of the GDPR respectively, with a warning sanction for each of the infringements.

No allegations have been received regarding the resolution proposal.

In view of all that has been acted upon by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: It is recorded in the file that the City Council of Ourense published, on the local entity's website, the call for the Local Government Board to be held on March 10, which included the personal data of the complainant.

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SECOND: It is recorded in the file that the aforementioned document contains the identifying data (name and surname) of the claimant in relation to a judgment in which they were convicted for the commission of an offense against road safety causing damage to municipal property.

THIRD: It is recorded in the file that on August 22, 2022, by using the Google search engine, it was possible to access the complete notification document of the call for the Governing Board, available at the domain www.ourense.gal.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Article 5.1.f) of the GDPR

Article 5.1.f) "Principles relating to processing" of the GDPR establishes:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, using appropriate technical or organizational measures ('integrity and confidentiality')."

In this case, it is recorded that the personal data of the claimant were improperly exposed to third parties, violating the principle of confidentiality and allowing unauthorized or unlawful processing of the same.

According to the file, the City Council of Ourense published, on the website of the local entity, the call for the Local Government Board to be held on March 10, which included the personal data of the claimant, with the following literal wording,

(...).

III

Classification of the infringement of Article 5.1.f) of the GDPR

The aforementioned infringement of Article 5.1.f) of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that:

"Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, infringements

that constitute a substantial violation of the articles mentioned therein are considered very serious and shall be subject to a limitation period of three years, particularly the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

IV

Sanction for the infringement of Article 5.1.f) of the GDPR

Article 83 "General conditions for the imposition of administrative fines" of the GDPR, paragraph 7, establishes:

"Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

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Furthermore, Article 77 "Applicable regime for certain categories of data controllers or processors" of the LOPDGDD provides as follows:

"1. The regime established in this article shall apply to the processing for which the following are responsible or act as processors: ...

c) The General Administration of the State, the administrations of the autonomous communities, and the entities that comprise the Local Administration...

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution sanctioning them with a warning. The resolution shall also establish the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed.

3. Without prejudice to what is established in the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regime that is applicable. Furthermore, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is proven, the resolution imposing the sanction shall include a reprimand naming the responsible official and shall order the publication in the corresponding Official State or regional Gazette.

4. The resolutions related to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where appropriate, to the analogous institutions of the autonomous communities. (...)"

Therefore, it is appropriate to sanction the CITY COUNCIL with a warning for the infringement of Article 5.1.f) of the GDPR.

V

Article 32 of the GDPR

Article 32 "Security of processing" of the GDPR establishes:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process for regularly testing, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law.”

In the present case, at the time of the security breach, there is no evidence that the CITY COUNCIL had reasonable security measures in place based on the estimated potential risks.

Disseminating the calls and minutes of the Governing Board through publication on the local entity's website does not guarantee the confidentiality, integrity, and availability of the processing systems and services nor the purpose of the processing.

The CITY COUNCIL states that the incident may have been due to human error, completely unintentional and without intent, circumstances that, in no case, justify the breach of confidentiality, integrity, and availability of the processing systems and services.

Reference is made to the obligations of active publicity to which the CITY COUNCIL is subject as a obliged entity, being a Local Administration; and, consequently, to the application of the limits of Article 14 and, especially, the derived protection of personal data, regulated in Article 15. In this regard, when the information contains specially protected data, publicity shall only be carried out after dissociating such data.

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This article 15 indicates that if the information includes data related to the commission of criminal or administrative offenses that do not involve public reprimand of the offender, access may only be authorized if there is express consent from the affected party or if it is covered by a law. Consequently, the aforementioned article 15 establishes the rules that will apply to achieve an appropriate balance in each case between the right of access to public information and the protection of personal data, and in relation to data concerning the commission of criminal or administrative offenses that do not involve public reprimand of the offender, it establishes that such data may only be published with consent or under the protection of a law.

On the other hand, the City Council has, in no case, detailed the technical and organizational measures it has in place to prevent these publications from violating the current regulations on data protection. It is also not evident that it adopted reasonable measures prior to the initiation of the current sanctioning procedure, taking into account the available technology and the cost of its implementation, to prevent the continued processing of publicly disclosed data, such as those described in article 17.2 of the GDPR.

VI

Classification of the infringement of article 32 of the GDPR

The aforementioned infringement of article 32 of the GDPR constitutes the commission of the infringements classified in article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to

a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

5) the obligations of the controller and the processor under articles 8, 11, 25 to 39, 42, and 43; (...)" In this regard, the LOPDGDD, in its article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, article 73 "Infringements considered serious" of the LOPDGDD indicates:

"Based on what is established in article 83.4 of Regulation (EU) 2016/679, the following shall be considered serious and shall be subject to a two-year statute of limitations:

...

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, as required by article 32.1 of Regulation (EU) 2016/679." (...)

VII

Sanction for the infringement of article 32 of the GDPR

Article 83 "General conditions for the imposition of administrative fines" of the GDPR paragraph 7 establishes:

"Without prejudice to the corrective powers of the supervisory authorities under article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

Likewise, article 77 "Applicable regime for certain categories of controllers or processors" of the LOPDGDD provides the following:

"1. The regime established in this article shall apply to the processing for which they are responsible or processors: ...

c) The General Administration of the State, the administrations of the autonomous communities, and the entities that make up the Local Administration...

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution sanctioning them with a warning. The resolution shall also establish the measures to be adopted to cease the conduct or to correct the effects of the infringement that has been committed.

3. Without prejudice to what is established in the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regimes that is applicable.

Furthermore, when the infringements are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for processing that have not been duly addressed, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order publication in the Official State Gazette or the corresponding autonomous gazette.

4. The resolutions regarding the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where appropriate, to the analogous institutions of the autonomous communities."

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Therefore, it is appropriate to sanction the CITY COUNCIL with a warning for the infringement of Article 32 of the GDPR.

Consequently, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on the CITY COUNCIL OF OURENSE, with NIF P3205500F, a warning sanction for an infringement of Article 5.1.f) of the GDPR classified under Article 83.5 of the GDPR.

TO IMPOSE on the CITY COUNCIL OF OURENSE, with NIF P3205500F, a warning sanction for an infringement of Article 32 of the GDPR classified under Article 83.4 of the GDPR.

SECOND: TO NOTIFY this resolution to the CITY COUNCIL OF OURENSE.

THIRD: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with the documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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Director of the Spanish Agency for Data Protection

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